

Court No. - 32

Case :- WRIT - C No. - 32582 of 2018

Petitioner :- Mohd. Asif

Respondent :- Uttar Pradesh Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kesh Mani Dubey

Counsel for Respondent :- Chandan Agarwal

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by the learned counsel for the respondents, put up this matter as fresh on 4.10.2018 to enable him to seek instructions in the matter.

Order Date :- 26.9.2018

MLK

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Respondent :- Uttar Pradesh Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kesh Mani Dubey

Counsel for Respondent :- Chandan Agarwal

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

Heard learned counsel for the petitioner and Sri Chandan Agrawal, learned counsel for the respondents.

The petitioner was having an electricity connection at his residence which has been permanently disconnected.

Aggrieved, the petitioner has preferred this petition seeking a direction for quashing the order of permanent disconnection and for re-installation of the said connection.

Sri Chandan Agrawal submits that there is a dispute of ownership of the house and since the father of the petitioner submitted documents to establish that the petitioner is not the owner of the property, the electricity of the petitioner has been permanently disconnected.

The electricity connection once granted can only be disconnected in accordance with provisions of paragraph 4.38 of the U.P. Electricity Supply Code, 2005.

The aforesaid provisions do not contemplate for disconnection of the power supply on account of any dispute with regard to property. Apparently, none of the grounds contained in paragraphs 4.38 of the Code are attracted.

In view of the aforesaid facts and circumstances, we direct the petitioner to apply to the Executive Engineer for reconnection of the electricity connection in accordance with the provisions of paragraph 4.39 or any other relevant provision of the Code and in case any such application is filed, the Executive Engineer shall consider it in accordance with law most expeditiously preferably within a period of six weeks from the date of filing of the application. The Executive Engineer in deciding the

matter shall hear the concerned parties including the father of the petitioner.

The petition is disposed of.

Order Date :- 4.10.2018

SKS